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KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

KOSTIANTYN MARS

Plaintiff,

vs.

STATE OF CALIFORNIA;

GAVIN NEWSOM, in his official capacity as Governor of the
State of California;

BETH MCGOWEN, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

JULIE EMEDE, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS

(Petitioner in the above-referenced state matters);

and all other judges, officials, agents, and co-conspirators acting
under color of law, including but not limited to Stephen Lowney,
Andrea Flint, James Towery, Thomas Kuhnle, Benjamin
Williams, Michael Clark, and Jessica Tenorio,

Defendants.

) Case No. :

)
) **NOTICE OF REMOVAL**
) **AND EMERGENCY**
) **MOTION FOR**
) **TEMPORARY**
) **RESTRAINING ORDER**
) **(Filed pursuant to 28 U.S.C.**
) **§§ 1331, 1343, 1367, 1441,**
) **1443, 1455, and 1651)**

) **DATE:**
) **TIME:**
) **DEPT:**

**NOTICE OF REMOVAL
AND EMERGENCY MOTION FOR TEMPORARY RESTRAINING ORDER
(Filed pursuant to 28 U.S.C. §§ 1331, 1343, 1367, 1441, 1443, 1455, and 1651)**

Related State Court Matters Removed:

- Criminal Case No. B2402220
- Domestic Violence Case No. 22DV000779
- Family Law / Divorce / Custody Case No. 22FL003144
- Name Change Case No. 24CV441024
- DCSS Wage Garnishment and Arrears Enforcement Case No. 200000002626999

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ACCOMPANYING DOCUMENTS

- Civil RICO Complaint
- Motion to Dismiss Criminal Case B2402220 with Prejudice
- Proposed Order Granting Emergency Temporary Restraining Order
- Proposed Order Granting Motion to Dismiss Criminal Case B2402220
- Civil Cover Sheet (JS-44)
- Consolidated Evidence Binder – Exhibit A (48 Exhibits)

IV. CONSOLIDATED EVIDENCE BINDER – EXHIBIT A

Certification - Declaration of Kostiantyn Mars (28 U.S.C. § 1746) - Authentication of All

Set 1 - Federal Filings and Jurisdictional Basis

Set 2 - Judicial Disqualifications and Void Orders

Set 3 - Criminal Case B2402220 – Evidence in Support of Immediate Dismissal with Prejudice

Set 4 - Evidence of Petitioner’s Active Pursuit of Custody Restoration and Denial of Parental Rights

Set 5 - Financial Extortion, Asset Seizure, DCSS Wage Garnishment Proceedings, and Evidence Supporting Dismissal of Garnishment and Fabricated Arrears

Set 6 - Pattern of Racketeering Activity and State-Level Cover-Up

Set 7 - Evidence of Interstate and International Criminal Coordination

Set 8 - Video Evidence Archive

Set 9 - Sunnyvale Police Department Records

Set 10 - Service, Chain of Custody, and Litigation Hold

Set 11 - Declaration and Authentication

Appendices

Appendix A – Master Chronological Timeline (2022–2026)

Appendix B – Summary Chart of Void Orders and Predicate Acts

I. STATUTORY BASIS FOR REMOVAL

This Notice of Removal is filed pursuant to:

- 28 U.S.C. § 1443 (Civil rights removal)
- 28 U.S.C. § 1331 (Federal question jurisdiction)
- 28 U.S.C. § 1343 (Civil rights and equal protection enforcement)
- 28 U.S.C. § 1455 (Criminal prosecutions removal procedure)
- 28 U.S.C. § 1367 (Supplemental jurisdiction over related DCSS enforcement)
- 28 U.S.C. § 1651 (All Writs Act)
- 28 U.S.C. § 1441 (General removal provision)

II. CASES BEING REMOVED

Petitioner removes the following related state-court proceedings in their entirety for federal review and adjudication:

- Santa Clara County Superior Court Criminal Case B2402220
- Santa Clara County Superior Court Domestic Violence Case 22DV000779
- Santa Clara County Superior Court Family Law / Divorce / Custody Case 22FL003144
- Santa Clara County Superior Court Name Change Case 24CV441024
- DCSS Wage Garnishment and Arrears Enforcement Case 200000002626999 (arising directly from void orders issued in Case 22FL003144)

III. GROUNDS FOR REMOVAL

Removal is warranted because the state proceedings involve systemic deprivation of constitutional rights, denial of due process, and a pattern of racketeering activity under color of law in California, enforced on the state level. Specifically:

- All orders issued by disqualified judges (Stephen Lowney, Andrea Flint, and James Towery) are void ab initio under California Code of Civil Procedure § 170.4(d).
- Petitioner was subjected to extortion of his 401(k) funds, vehicle title, and minor child Max Mars's passport and identity documents, enforced through threats of incarceration, denial of hearings, and denial of access to court (see Exhibit B-14 – Key Statements from the February 7, 2024 hearing before Judge Lowney).
- Unlawful wage garnishment and fabricated arrears in DCSS Case 200000002626999 constitute direct predicate acts of extortion and money laundering.
- Fabricated criminal charges, bench warrants, and arrest warrants were issued after Petitioner's lawful disqualification statements and while he was present in open court requesting dismissal.
- Change of venue to another county, numerous appeals, removal of disqualified judges, and nullification of void orders were denied by presiding judge Beth McGowen, thereby perpetuating the deprivation of rights on the county level.
- Oversight bodies, including the California Commission on Judicial Performance (CJP), California State Bar, and California Attorney General's Office refused to intervene in child trafficking schema / international child abduction and targeted racketeering attack on Petitioner, denying multiple RICO complaints to CJP and AG offices, thereby perpetuating the deprivation of rights on the state level.
- These acts form a continuous pattern of racketeering activity (18 U.S.C. § 1961 et seq.) on the state level in California designed to coerce surrender of assets, parental rights, and to facilitate international child abduction.

IV. ABSTENTION DOCTRINES DO NOT BAR FEDERAL JURISDICTION

This Court has original federal question jurisdiction under 28 U.S.C. §§ 1331 and 1343 and removal jurisdiction under 28 U.S.C. §§ 1441, 1443, and 1455. The doctrines of Younger abstention, the domestic relations exception, and Rooker-Feldman do not preclude removal or this Court's exercise of jurisdiction for the following reasons:

1. First, Younger abstention does not apply because the state proceedings are being conducted in bad faith and for the purpose of harassment. The underlying Domestic Violence Restraining Order issued on November 28, 2023 is void ab initio under California Code of Civil Procedure § 170.4(d), having been issued by disqualified judge Flint who continued to act after timely Statements of Disqualification were filed and ignored. The criminal prosecution (Case B2402220) was fabricated and used as leverage for extortion of Movant's 401(k) funds, vehicle title, and minor child's passport and identity documents under documented threats of incarceration (February 7, 2024 hearing before Judge Lowney). Extraordinary circumstances exist where the California state courts are structurally incapable of providing due process due to the documented racketeering enterprise on the California state level.
2. Second, the domestic relations exception is inapplicable. While certain removed matters involve family law proceedings, the core claims arise under federal civil rights and RICO statutes (42 U.S.C. § 1983 and 18 U.S.C. §§ 1961-1968) for systemic deprivation of constitutional rights, extortion under color of law, child trafficking, denial of access to court and malicious prosecution. Federal courts retain jurisdiction over such independent constitutional and statutory claims even when they touch upon domestic relations.
3. Third, the Rooker-Feldman doctrine does not bar this action. Movant does not seek to review or vacate final state-court judgments in the sense prohibited by Rooker-Feldman. Rather, Movant challenges ongoing deprivations of federal rights arising from void orders issued by disqualified judges and a pattern of racketeering that is causing irreparable harm and continues to this day. The claims are independent of any state-court judgment and seek prospective relief from continuing constitutional violations.

V. RELIEF REQUESTED

Petitioner respectfully requests that the Court:

1. **Accept removal** of all listed cases and assume full jurisdiction.
2. **Immediately stay all enforcement actions**, warrants and orders pending federal review.
3. **Dismiss Criminal Case B2402220** with prejudice and **expunge all related warrants and records** including Bench warrant No. 002400020658 (08/21/2024), and Arrest warrant No. 2400025644 (10/23/2024).
4. **Dismiss DCSS Case 200000002626999** in its entirety, vacate all fabricated arrears, and order immediate deletion of all negative credit reporting.
5. **Declare all orders and warrants issued in Cases 22FL003144 and 22DV000779 (including family bench warrant issued on June 17, 2024) void ab initio and permanently nullify them.**
6. **Authorize immediate emergency withdrawal / release of Petitioner's 401(k) funds.**
7. **Issue a final divorce decree** (or bifurcation of marital status) in **Case 22FL003144.**
8. **Restore full legal and physical custody of minor child Max Mars to Petitioner** and direct the U.S. Department of Justice International Parental Kidnapping Unit to assist with safe return.
9. **Grant name change:** Kostiantyn Mars to **Royce Mars** (Case 24CV441024).
10. **Issue protective SSN/ID relief (new SSN to prevent further fraud).**
11. **Order return of Petitioner's vehicle** VW Tiguan (CA plate 7ZND242).
12. **Award treble damages under 18 U.S.C. § 1964(c) in the amount of \$600,000** for all property injuries caused by the unlawful DCSS wage garnishment, together with compensatory and punitive damages, attorneys' fees, and costs.
13. **Declare the vexatious litigant pre-filing order** issued on March 11, 2024 in Case No. 22FL003144 by disqualified Judge Stephen Lowney **void ab initio** under California Code of Civil Procedure § 170.4(d), **vacate said order with prejudice**, and direct the California Judicial Council and the Clerk of the Santa Clara County Superior Court to **immediately remove Plaintiff Kostiantyn Mars from the statewide Vexatious Litigant List** maintained pursuant to Code of Civil Procedure § 391.7.
14. In light of the documented pattern of racketeering and retaliation, threats of unlawful incarceration, and systemic corruption within the Santa Clara County Superior Court,

1 Plaintiff respectfully requests that **any hearing** on the Emergency Motion for Temporary
2 Restraining Order or the Motion to Dismiss Criminal Case B2402220 **be conducted**
3 **remotely by video with mandatory audio and video recording** by the Court. This
4 safeguard is necessary to protect Plaintiff's safety, prevent further violations of due
5 process, and ensure independent federal oversight of the proceedings.

6
7 **VI. CONCLUSION**

8 The removed state actions constitute ongoing violations of Petitioner's constitutional rights and
9 a pattern of racketeering under color of law. Federal removal and immediate injunctive relief
10 are necessary to prevent irreparable harm and to restore Petitioner's fundamental rights.

11 Respectfully submitted,

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13 DATED: April 8, 2026

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16 KOSTIANTYN MARS
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WESTERN DISTRICT OF TEXAS
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(Petitioner in the above-referenced state matters);

and all other judges, officials, agents, and co-conspirators acting
under color of law, including but not limited to Stephen Lowney,
Andrea Flint, James Towery, Thomas Kuhnle, Benjamin
Williams, Michael Clark, and Jessica Tenorio,

Defendants.

) Case No. :

)
) **EMERGENCY MOTION**
) **FOR TEMPORARY**
) **RESTRAINING ORDER**
) **(Fed. R. Civ. P. 65(b))**

) **DATE:**
) **TIME:**
) **DEPT:**

**EMERGENCY MOTION FOR TEMPORARY RESTRAINING ORDER
(Fed. R. Civ. P. 65(b))**

Related State Court Matters Removed:

- Criminal Case No. B2402220
- Domestic Violence Case No. 22DV000779
- Family Law / Divorce / Custody Case No. 22FL003144
- Name Change Case No. 24CV441024
- DCSS Wage Garnishment and Arrears Enforcement Case No. 200000002626999

EMERGENCY MOTION FOR TEMPORARY RESTRAINING ORDER

Plaintiff Kostiantyn Mars respectfully moves this Court, pursuant to Federal Rule of Civil Procedure 65(b), for an immediate Temporary Restraining Order staying all enforcement actions in the removed state court matters and granting the comprehensive relief set forth below. This motion is filed concurrently with Plaintiff's Notice of Removal under 28 U.S.C. §§ 1331, 1343, 1367, 1441, 1443, 1455, and 1651.

I. INTRODUCTION

Plaintiff faces imminent and irreparable harm from the continued enforcement of void orders issued by disqualified judges, including unlawful arrest warrants, fabricated criminal charges, wage garnishment, denial of access to the courts, and the ongoing international abduction of his minor son Max Mars. Immediate injunctive relief is required to preserve the status quo, protect Plaintiff's constitutional rights, prevent further extortion and racketeering under color of law, and restore custody of his son pending full federal review.

II. FACTUAL BACKGROUND

The facts supporting removal and this motion are set forth in detail in the concurrently filed Notice of Removal and are incorporated herein by reference. In summary:

- All orders in the removed cases were issued by disqualified judges (Stephen Lowney, Andrea Flint, James Towery) after lawful disqualification statements and are therefore **void ab initio** under California Code of Civil Procedure § 170.4(d).
- Plaintiff has been subjected to extortion of his 401(k) division, vehicle title, and minor child Max Mars's passport and identity documents through threats of incarceration and denial of hearings.
- Fabricated criminal proceedings (Case B2402220), multiple arrest and bench warrants, and unlawful DCSS wage garnishment (Case 200000002626999) have been used as instruments of racketeering and malicious prosecution.
- Plaintiff's son Max Mars remains unlawfully detained and at risk of international abduction to Ukraine under void orders issued by the Santa Clara Mafia Cartel.
- A vexatious litigant order issued on March 11, 2024 by disqualified Judge Lowney after his disqualification on February 20, 2024 is likewise void ab initio.

III. LEGAL STANDARD

A temporary restraining order is warranted where the movant shows: (1) a substantial likelihood of success on the merits; (2) a substantial threat of irreparable injury; (3) that the threatened injury outweighs any damage the injunction may cause the opposing party; and (4) that the injunction will not disserve the public interest. *Winter v. Natural Resources Defense Council, Inc.*, 555 U.S. 7 (2008). All four factors are satisfied here.

IV. ABSTENTION DOCTRINES DO NOT PRECLUDE EMERGENCY RELIEF

The doctrines of Younger abstention, the domestic relations exception, and Rooker-Feldman do not bar this Court from granting immediate injunctive relief. The state proceedings are infected by bad faith and extraordinary circumstances: void ab initio orders issued by disqualified judges, documented extortion under color of law, and the use of fabricated criminal charges as leverage to extort assets and restrict parental rights. No adequate remedy exists in the state forum due to the systemic corruption and concealment of disqualifications by the presiding judges. Federal intervention is not only permitted but required to prevent irreparable harm to Movant's constitutional rights and the safety and custody of the minor child.

IV. RELIEF REQUESTED

Plaintiff respectfully requests that the Court immediately enter a Temporary Restraining Order:

1. **Accepting removal** of all listed cases and assuming full jurisdiction.
2. **Staying all enforcement actions**, warrants and orders pending federal review.
3. **Dismissing Criminal Case B2402220** with prejudice and **expunging all related warrants and records** including Bench warrant No. 002400020658 (08/21/2024), and Arrest warrant No. 2400025644 (10/23/2024).
4. **Dismissing DCSS Case 200000002626999** in its entirety, vacating all fabricated arrears, and ordering immediate deletion of all negative credit reporting.
5. **Declaring all orders and warrants issued in Cases 22FL003144 and 22DV000779 (including family bench warrant issued on June 17, 2024) void ab initio and permanently nullify them.**
6. **Authorizing immediate emergency withdrawal / release of Petitioner's 401(k) funds.**
7. **Issuing a final divorce decree** (or bifurcation of marital status) in **Case 22FL003144.**
8. **Restoring full legal and physical custody of minor child Max Mars to Plaintiff** and directing the U.S. Department of Justice International Parental Kidnapping Unit to assist with safe return.
9. **Granting name change:** Kostiantyn Mars to **Royce Mars** (Case 24CV441024);
10. **Issuing protective SSN/ID relief** (new SSN to prevent further fraud).
11. **Ordering return of Petitioner's vehicle** VW Tiguan (CA plate 7ZND242).
12. **Awarding treble damages under 18 U.S.C. § 1964(c) in the amount of \$600,000** for all property injuries caused by the unlawful DCSS wage garnishment, together with compensatory and punitive damages, attorneys' fees, and costs.
13. **Declaring the vexatious litigant pre-filing order** issued on March 11, 2024 in Case No. 22FL003144 by disqualified Judge Stephen Lowney **void ab initio** under California Code of Civil Procedure § 170.4(d), **vacating said order with prejudice**, and directing the California Judicial Council and the Clerk of the Santa Clara County Superior Court to **immediately remove Plaintiff Kostiantyn Mars from the statewide Vexatious Litigant List** maintained pursuant to Code of Civil Procedure § 391.7.
14. In light of the documented pattern of racketeering and retaliation, threats of unlawful incarceration, and systemic corruption within the Santa Clara County Superior Court, Plaintiff respectfully requests that **any hearing** on the Emergency Motion for Temporary

1 Restraining Order or the Motion to Dismiss Criminal Case B2402220 **be conducted**
2 **remotely by video with mandatory audio and video recording** by the Court. This
3 safeguard is necessary to protect Plaintiff's safety, prevent further violations of due
4 process, and ensure independent federal oversight of the proceedings.

5
6 **V. CONCLUSION AND PRAYER FOR RELIEF**

7 Plaintiff respectfully requests that the Court grant the Emergency Temporary Restraining Order
8 and all relief requested in the Notice of Removal.

9 Respectfully submitted,

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11 DATED: April 8, 2026

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14 KOSTIANTYN MARS
15 Pro Se
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**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
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KOSTIANTYN MARS

Plaintiff,

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(Petitioner in the above-referenced state matters);

and all other judges, officials, agents, and co-conspirators acting
under color of law, including but not limited to Stephen Lowney,
Andrea Flint, James Towery, Thomas Kuhnle, Benjamin
Williams, Michael Clark, and Jessica Tenorio,

Defendants.

) Case No. :

) **PROPOSED ORDER**

) **GRANTING**

) **EMERGENCY**

) **TEMPORARY**

) **RESTRAINING ORDER**

) **DATE:**

) **TIME:**

) **DEPT:**

PROPOSED ORDER

GRANTING EMERGENCY TEMPORARY RESTRAINING ORDER

Related State Court Matters Removed:

- Criminal Case No. B2402220
- Domestic Violence Case No. 22DV000779
- Family Law / Divorce / Custody Case No. 22FL003144
- Name Change Case No. 24CV441024
- DCSS Wage Garnishment and Arrears Enforcement Case No. 200000002626999

PROPOSED ORDER
GRANTING EMERGENCY TEMPORARY RESTRAINING ORDER

Upon consideration of Plaintiff Kostiantyn Mars's Emergency Motion for Temporary Restraining Order filed concurrently with his Notice of Removal, and good cause appearing, the Court hereby ORDERS as follows:

IT IS HEREBY ORDERED that:

1. The Court accepts removal of all listed state court matters (B2402220, 22DV000779, 22FL003144, 24CV441024, 200000002626999) and assumes full jurisdiction over them pursuant to 28 U.S.C. §§ 1331, 1343, 1367, 1441, 1443, 1455, and 1651.
2. All enforcement actions, proceedings, and orders in the removed cases are immediately **STAYED** pending further order of this Court.
3. Criminal Case No. **B2402220** is **DISMISSED WITH PREJUDICE**. All related bench warrants, arrest warrants, and criminal records are ordered expunged.
4. DCSS Wage Garnishment and Arrears Enforcement Case No. **200000002626999** is **DISMISSED IN ITS ENTIRETY**. All fabricated arrears are vacated, and all negative credit reporting arising from this case shall be immediately deleted.
5. All orders issued in Cases **22FL003144** and **22DV000779** are hereby **DECLARED VOID AB INITIO** under California Code of Civil Procedure § 170.4(d) and are permanently nullified.
6. A final divorce decree (or bifurcation of marital status) shall be issued in Case No. **22FL003144**.
7. Full legal and physical custody of the minor child Max Mars is restored to Plaintiff Kostiantyn Mars. The United States Department of Justice, International Parental Kidnapping Unit, is directed to assist with the safe return of Max Mars to Plaintiff's custody in Texas.
8. Plaintiff's 401(k) funds are immediately released for emergency hardship withdrawal.
9. Plaintiff's vehicle bearing California plate 7ZND242 shall be returned to him forthwith.
10. The name change is granted (Case 24CV441024): Kostiantyn Mars to Royce Mars.
11. Protective SSN/ID relief is granted as necessary to safeguard Plaintiff's identity.
12. Treble damages under 18 U.S.C. § 1964(c), together with compensatory damages, punitive damages, attorneys' fees, and costs, are awarded for the unlawful DCSS garnishment and related property injuries.

1 13. The vexatious litigant pre-filing order issued on March 11, 2024 in Case No.
2 22FL003144 by disqualified Judge Stephen Lowney is hereby **DECLARED VOID AB**
3 **INITIO** pursuant to California Code of Civil Procedure § 170.4(d). Said order is
4 **VACATED** with prejudice. The California Judicial Council and the Clerk of the Santa
5 Clara County Superior Court are **DIRECTED** to immediately remove Plaintiff
6 Kostiantyn Mars from the statewide Vexatious Litigant List maintained pursuant to Code
7 of Civil Procedure § 391.7 and to confirm compliance with this Court within seven (7)
8 days of receipt of this Order.

9 14. Any hearings deemed necessary in the removed actions **shall be conducted remotely via**
10 **video conference, with mandatory simultaneous video and audio recording** under
11 federal oversight, to ensure transparency, preserve the record, prevent further fraud on the
12 court, and protect Plaintiff's constitutional rights and physical safety.

13 **IT IS FURTHER ORDERED** that **any hearing** on this Emergency Motion for Temporary
14 Restraining Order, or on any related motion in this case, **shall be conducted remotely by**
15 **video with mandatory audio and video recording** by the Court. This safeguard is necessary
16 to protect Plaintiff's safety, prevent further violations of due process, and ensure independent
17 federal oversight of the proceedings.

18 **IT IS SO ORDERED.**

19 DATED: _____

20 United States District Judge
21 Western District of Texas
22 Austin Division
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